

Case :- WRIT - C No. - 31047 of 2018

Petitioner :- Pramod Kumar Sharma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shanti Dhar Dwivedi

**Counsel for Respondent :- C.S.C., Chandan
Agarwal**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

This writ petition has been filed, inter alia, for the following relief:

"(I) Issue a writ, order or direction in the nature of mandamus directing the respondent no. 3 to grant the electricity connection to the petitioner and petitioner having fulfilled entire formalities and deposited entire amount as demanded by the respondent no. 3 as expeditiously as possible.

(II) Issue a writ, order or direction in the nature of mandamus directing the respondent no. 3 to decide the representation dated 26.07.2018 (Annexure No. 7) submitted before the respondent no. 3 by the petitioner."

Learned counsel for the petitioner has stated that the electric connection is being denied by the Electricity Department on the ground that there is a dispute going on between the landlord and tenant over the premises in question.

Heard learned counsel for the petitioner, learned counsel appearing on behalf of the Electricity Department and perused the record.

Learned counsel appearing on behalf of the Electricity Department has drawn our attention to the Clause 4.4 of the U.P. Electricity Supply Code as well as Annexure 4.2 of the aforesaid Code with regard to filing of indemnity bond.

Considering the facts and circumstances of the case, the respondent no. 3- Executive Engineer, Electricity Distribution Division, Town Hall Hapur, District Hapur is directed to consider and grant electricity connection to the petitioner subject to his making application in accordance with law and procedure prescribed in Uttar Pradesh Electricity Supply Code, 2005 and giving indemnity bond and fulfilling all other requirements as provided under the Code.

With the aforesaid observation, this writ petition is finally disposed of.

Order Date :- 13.9.2018

Arun